

WRITTEN REQUEST TO THE COUNTY OR CITY ATTORNEY UNDER MINN. STAT. SEC.
609A.025

USE THIS WRITTEN REQUEST ONLY WHERE THE COUNTY RUNS NO PUBLISHED
PROGRAMME. Hennepin, Ramsey and Washington Counties run published record-sealing applications
of their own; where your county does, THAT PROGRAMME GOVERNS and you apply through it - this
request is not its substitute. The guidance page walks the branches.

To: the county attorney, or the city attorney, that prosecuted the case
Office name and mailing address (you identify the correct prosecuting authority and its address before
sending - the Minnesota Attorney General's expungement page is the statewide entry point for identifying
it):

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.....

From: Maria-Alejandra O'Shaughnessy-Whitfield
Date of birth: 1968-12-31
Mailing address: 11884 Mississippi Headwaters Crossing Boulevard Northeast, Apartment 14B,
Rochester, Minnesota 55906-2214
Telephone: (507) 555-0199 ext. 4417
Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

RE: REQUEST THAT YOUR OFFICE AGREE TO SEALING UNDER MINN. STAT. Sec. 609A.025

1. I, Maria-Alejandra O'Shaughnessy-Whitfield, ask your office, as the prosecuting authority in the case
identified below, to agree to the sealing of the record under Minn. Stat. Sec. 609A.025. Where the
prosecutor agrees, the court shall seal the record without any petition from me, unless the court
determines that the interests of the public and public safety in keeping the record public outweigh the
disadvantages to me of not sealing it.

2. The case is identified as follows, from my own court and criminal history records:

Minnesota county of the case:

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Prosecuted by (the county attorney, or which city attorney):

.....

Court file number (from Minnesota Court Records Online or the court's own papers):

.....

How the case ended (the disposition), exactly as the court record states it:

.....

The Minn. Stat. Sec. 609A.02, subd. 3 ground I believe applies, and why:

.....
.....

3. In my own words, why I am asking your office to agree (these lines are yours alone; nothing on them is written for you):

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.....

4. I understand that your office's agreement is discretionary; that before agreeing, Sec. 609A.025 requires your office to make a good-faith effort to notify any identifiable victims of the intended agreement and of the opportunity to object; and that this request does not ask your office to skip any step the statute requires.

DATE SIGNATURE

(You sign and date this request personally. The request is your own, and nothing on this page is signed or dated for you. No notarization is required.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

Route: obligation:unit:MN:mn_prosecutor_agreed:mn_prosecutor_agreed-written-request

WHICH BRANCH IS YOURS, AND WHAT HAPPENS AFTER THE PROSECUTOR AGREES

For: Maria-Alejandra O'Shaughnessy-Whitfield

WHAT THIS MECHANISM IS. Minn. Stat. Sec. 609A.025 is one statewide mechanism with county-specific intake: where the prosecutor agrees to sealing, the court SHALL seal the record - without any petition from you - unless it determines that the interests of the public and public safety in keeping the record public outweigh the disadvantages to you. The prosecutor's agreement is discretionary, and before agreeing the prosecutor must make a good-faith effort to notify identifiable victims of the intended agreement and of the opportunity to object.

WHICH BRANCH IS YOURS.

- PORTAL COUNTIES. Hennepin, Ramsey and Washington Counties run published online record-sealing applications. Those are the counties' own third-party intake systems with their own field requirements: this packet prepares your factual summary and routes you to the county portal, and it does not - and must not - complete or submit a county portal application for you. Where a county programme exists, it governs.

- EVERY OTHER COUNTY. Where the county runs no published programme, the accepted vehicle is your own signed written request to the county or city attorney - the request page of this packet. The Minnesota Attorney General's expungement page is the statewide entry point for identifying the correct prosecuting authority and its address.

YOUR RECORDS FIRST. Request your own Minnesota criminal history from the Bureau of Criminal Apprehension, and look your cases up on Minnesota Court Records Online. The county, the prosecuting authority, the court file number and the disposition are copied from those records, never from memory. This packet never collects, inspects or authenticates them.

TIMING. The Sec. 609A.02, subd. 3 waiting periods apply by reference. For a diversion or stay of adjudication described in subd. 3(a)(2), the prosecutor's agreement may occur before or after the charges are dismissed.

FEES. None is identified for the prosecutor application, and whether any county charges is an open question this packet does not answer: ask the office you are applying to before sending anything with money attached.

AFTER THE PROSECUTOR AGREES. There is nothing for you to file. The court acts on the agreement and seals unless the public-interest balance goes the other way. If you are asked to do anything at the court stage, that is a sign the case has left the no-petition path - get help.

WHAT THIS PACKET DOES NOT DO. It does not obtain the prosecutor's agreement, does not negotiate, and does not advise whether approaching the prosecutor is strategically preferable to petitioning under the ordinary expungement route - that judgment is exactly where self-help stops.

WHEN TO STOP AND GET HELP INSTEAD OF SENDING

- any question of whether approaching the prosecutor is strategically advisable;

- any case with an identifiable victim - the victim-notice step belongs to the prosecutor, and a case with a victim is a case for counsel;
- any case where Department of Human Services, DCYF, Department of Health or PELSB records matter for your work or licence - Sec. 609A.03, subd. 7a(b)(4) permits a background-study opening unless the order is directed specifically to the commissioner of human services following Sec. 609A.025 proceedings upon service of an order on the commissioner, and that conditional is narrow - flag it to counsel;
- the prosecutor declines, or asks to negotiate;
- a county without a published programme where the city or county attorney will not accept a written request.

Route: obligation:unit:MN:mn_prosecutor_agreed:mn_prosecutor_agreed-written-request

ATTACHMENT: YOUR OWN REHABILITATION MATERIAL

USE THIS PAGE ONLY WHERE THE LOCAL PROGRAMME REQUESTS REHABILITATION MATERIAL. Some county programmes ask for material about what you have done since the case. This page formats your own material; it does not assess it, and nothing on it is written for you.

For: Maria-Alejandra O'Shaughnessy-Whitfield

List here, in your own words and your own hand, the material you are attaching - for example programmes completed, work history, education, community involvement - and attach the documents themselves behind this page:

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.....

Everything listed and attached is yours: obtained by you, chosen by you, attached by you. This packet does not collect, inspect, assess or authenticate any of it.

Route: obligation:unit:MN:mn_prosecutor_agreed:mn_prosecutor_agreed-written-request